

		<i>Counsel for LoanDepot.com, LLC is ordered to give notice of this ruling.</i>
2.	Koc v. Unal 24-1450686	Pro per defendant Abdullah Unal's ("Defendant") unopposed Motion to Set Aside Default and Default Judgment is DENIED without prejudice. Defendant brings the motion pursuant to <i>Civ. Proc. Code § 473(b)</i>, which requires the responsive pleading (i.e. answer, demurrer, motion to strike, etc.) to be filed along with the motion. No such pleading was filed. There is also no evidence the motion was ever served on plaintiff Mesut Koc ("Plaintiff") as required by the code. (<i>Civ. Proc. Code § 1005.</i>) Based on the above, the motion is denied without prejudice to correcting the issues and refiling. The court warns Defendant that a renewed motion must be filed within six months of entry of judgment. (<i>Civ. Proc. Code § 473(b).</i>) Judgment was entered on March 25, 2026. (ROA 47.) <i>The Clerk of the Court will give notice of the ruling.</i>
3.	Reed v. Blucker 26-1554798	Before the Court is a special motion to strike pursuant to <i>Code of Civil Procedure section 425.16</i> filed by defendant James Blucker (Defendant) as to the complaint filed by plaintiff Curtis Reed (Plaintiff). For the reasons set forth below, the motion is GRANTED. Defendant's request for judicial notice is GRANTED. <i>Civil Procedure Code section 425.16(b)</i> provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (<i>Code Civ. Proc. § 425.16, subd. (b).</i>) In ruling on a special motion to strike under Section 425.16, the court must follow a two-step process. (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. (<i>Ibid.</i>) If the moving party makes the showing required in the first step, the court then determines whether the non-moving party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) <u>Protected Activity</u>. Statements and writings made during judicial proceedings are protected by the anti-SLAPP statute. (<i>Code of Civ. Proc. § 425.16, subd. (e)(1).</i>) Here, Defendant met its burden showing this action arises out of protected activity. Plaintiff's complaint arises out of Defendant's communications during judicial proceedings while

		representing his client in the underlying unlawful detainer action, including settlement negotiations. (Compl. ¶¶ 1-4.) <u>Probability of Prevailing.</u> The burden shifts to Plaintiff to show probability of success on the merits of the fraud claim. The “probability of prevailing” is tested by the same standard governing a motion for summary judgment, i.e., in opposing an anti-SLAPP motion, it is plaintiff’s burden to make a prima facie showing of facts that would support a judgment in plaintiff’s favor. (<i>Taus v. Loftus</i> (2007) 40 Cal.4th 683, 714.) The plaintiff must also produce admissible evidence sufficient to overcome any privilege or defense that defendant has asserted to the claim. (<i>Flatley v. Mauro</i> (2006) 39 Cal.4th 299, 323.) Here, Defendant contends the litigation privilege under <i>Civil Code section 47, subdivision (b)(2)</i> applies. The privilege applies to “any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) to have some connection or logical relation to the action.” [Citations.]” (<i>Silberg v. Anderson</i> (1990) 50 Cal.3d 205, 212.) The privilege is an “absolute” privilege, and bars all tort causes of action except a claim for malicious prosecution. (<i>Hagberg v. California Federal Bank</i> (2004) 42 Cal.4th 350, 360.) Again, Plaintiff’s complaint arises out of Defendant’s communications during judicial proceedings. Defendant has shown Plaintiff’s complaint is barred by the litigation privilege. Plaintiff failed to oppose the motion showing probability of prevailing on the fraud claim or disputing applicability of the litigation privilege. The motion is therefore GRANTED. Defendant’s alternative motion to quash service of the summons is MOOT. <i>Counsel for Defendant shall give notice of this ruling.</i>
4.	Keno Capital, LLC v. Oakleaf Holding, LLC 23-1313683	Defendants Oakleaf Holding LLC, Orchid Management LLC and John L. Sorensen (“Defendants” together) Demurrer to plaintiff Keno Capital, LLC’s (“Plaintiff”) Second Amended Complaint (“SAC”) is SUSTAINED. Defendants demur solely to the eighth cause of action for Breach of the Implied Covenant of Good Faith and Fair Dealing based on lack of sufficient facts and uncertainty. (<i>Civ. Proc. Code § 430.10(e) and (f)</i>.) Defendants also contend the SAC was not filed within the 15-day deadline specified by the court. The court will proceed on the merits despite the SAC being filed late as the clerk did provide notice. The court also notes Defendant again did not make any arguments related to uncertainty, the demurrer is moot on that point. “There is no obligation to deal fairly or in good faith absent an existing contract. [Citation.] If there exists a contractual relationship between the parties. . . the implied covenant is limited to assuring compliance with the express terms of the